

COMMITTEE ON LEGISLATIVE RESEARCH
OVERSIGHT DIVISION

FISCAL NOTE

L.R. No.: 3852S.01I
Bill No.: SB 1257
Subject: Children and Minors; Highway Patrol; Motor Vehicles; Transportation
Type: Original
Date: March 18, 2026

Bill Summary: This proposal modifies provisions relating to drivers' duty to secure child passengers.

FISCAL SUMMARY

ESTIMATED NET EFFECT ON GENERAL REVENUE FUND

FUND AFFECTED	FY 2027	FY 2028	FY 2029
Total Estimated Net Effect on General Revenue	\$0	\$0	\$0

ESTIMATED NET EFFECT ON OTHER STATE FUNDS

FUND AFFECTED	FY 2027	FY 2028	FY 2029
Total Estimated Net Effect on <u>Other</u> State Funds	\$0	\$0	\$0

Numbers within parentheses: () indicate costs or losses.

ESTIMATED NET EFFECT ON FEDERAL FUNDS

FUND AFFECTED	FY 2027	FY 2028	FY 2029
Total Estimated Net Effect on <u>All</u> Federal Funds	\$0	\$0	\$0

ESTIMATED NET EFFECT ON FULL TIME EQUIVALENT (FTE)

FUND AFFECTED	FY 2027	FY 2028	FY 2029
Total Estimated Net Effect on FTE	0	0	0

☐ Estimated Net Effect (expenditures or reduced revenues) expected to exceed \$250,000 in any of the three fiscal years after implementation of the act or at full implementation of the act.

☐ Estimated Net Effect (savings or increased revenues) expected to exceed \$250,000 in any of the three fiscal years after implementation of the act or at full implementation of the act.

ESTIMATED NET EFFECT ON LOCAL FUNDS

FUND AFFECTED	FY 2027	FY 2028	FY 2029
Local Government	\$0	\$0	\$0

FISCAL ANALYSIS

ASSUMPTION

Officials from the **Missouri Office of Prosecution Services** and **Office of the State Courts Administrator** did not respond to **Oversight's** request for fiscal impact for this proposal.

§307.179 – Child Passengers in Motor Vehicles

Officials from the **Department of Revenue (DOR)** assume the following regarding this proposal:

Administrative Impact

To implement the proposed legislation, the Department will:

- Update driver guide
- Update website information
- Update interactive applications for automated responses to customers through online system (DORA)

FY 2027 – Driver License Bureau

Research/Data Analyst 40 hrs. x \$37.14 per hr.= \$ 1,486

Administrative Manager 40 hrs. x \$51.40 per hr.= \$ 2,056

FY 2027 – Strategy and Communications Office (forms and website updates)

Associate Research/Data Analyst 40 hrs. x \$31.16 per hr. = \$ 1,246

Total = \$4,788

The Department anticipates this will be minimal impact and can be absorbed with existing staff.

Oversight assumes DOR is provided with core funding to handle a certain amount of activity each year. Oversight assumes DOR could absorb the costs related to this proposal. If multiple bills pass which require additional staffing and duties at substantial costs, DOR could request funding through the appropriation process.

Officials from the **Department of Public Safety-Missouri Highway Patrol, Missouri Department of Transportation, Department of Health and Senior Services and Department of Social Services** each assume the proposal will have no fiscal impact on their respective organizations. **Oversight** does not have any information to the contrary. Therefore, Oversight will reflect a zero impact in the fiscal note for these agencies.

Oversight notes, according to data provided by the Office of the State Courts Administrator, the following number of infractions of §307.179 per fiscal year were issued:

Fiscal Year	Number of Infractions for Violations of §307.179
2025	668
2024	747
2023	745
2022	793
2021	804
2020	657
2019	597

Oversight notes the fine amount for these infractions remains the same at \$50 plus court costs. Oversight assumes there will not be a significant change in the number of infractions as a result of the changes in the bill; therefore, Oversight will not reflect a material amount of additional fine revenue on the fiscal note.

<u>FISCAL IMPACT – State Government</u>	FY 2027 (10 Mo.)	FY 2028	FY 2029
	<u>\$0</u>	<u>\$0</u>	<u>\$0</u>

<u>FISCAL IMPACT – Local Government</u>	FY 2027 (10 Mo.)	FY 2028	FY 2029
	<u>\$0</u>	<u>\$0</u>	<u>\$0</u>

FISCAL IMPACT – Small Business

No direct fiscal impact on small businesses would be expected as a result of this proposal.

FISCAL DESCRIPTION

This act specifies that children under the age of 2 years riding in motor vehicles shall be secured in rear-facing child passenger restraint systems; except that the child may be secured in a front-facing system once the child reaches the highest rear-facing weight or height established by the restraint system's manufacturer.

The act also modifies the height, weight, and age requirements to specify that children shall be secured by a regular vehicle safety belt once they reach at least 4 feet, 9 inches in height; 80 pounds in weight; or 8 years of age.

The act repeals a provision specifying that a person shall not be in violation of the child passenger restraint law if, when transporting children in the immediate family and there are more children than seating positions in the vehicle, the children who are unable to be restrained by an appropriate child safety restraint are seated in the area behind the front seat of the vehicle unless the vehicle is designed only for a front seating area.

Penalties under the act are modified to specify that drivers transporting unsecured children who are under the age of 16 but not subject to a child restraint system or booster seat requirement shall be subject to the penalty specified in the act rather than the penalty for a safety belt violation.

Lastly, the act repeals a provision stating that charges under the act shall be dismissed or withdrawn if the driver provides evidence he or she has acquired a child passenger restraint system or booster seat.

This legislation is not federally mandated, would not duplicate any other program and would not require additional capital improvements or rental space.

SOURCES OF INFORMATION

Department of Revenue
Missouri Highway Patrol
Missouri Department of Transportation
Department of Health and Senior Services
Department of Social Services



Julie Morff
Director
March 18, 2026



Jessica Harris
Assistant Director
March 18, 2026